

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
ERVING MARTINEZ,

Plaintiff,

Plaintiff designates

Bronx County as the place of trial

-against-

The basis of the venue is where the
tort arose

CITY OF NEW YORK, Individually and in their capacities
as New York City Police Officers, ABDIEL ANDERSON,
JODI BROWN, ROBERT JAQUEZ, ROBERTO
TORIBIO, and JOHN or JANE DOE 1-10,

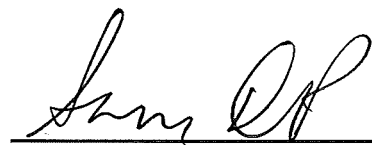
SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
April 26, 2019



SIM & DEPAOLA, LLP

BY: Samuel DePaola, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400

TO: Corporation Counsel of
The City of New York
100 Church Street
New York, NY 10007

PO ABDIEL ANDERSON of NARCB BX
Shield No. 1429, Tax ID No. 932254
One Police Plaza, 11th Floor
New York, NY 10038

PO JODI BROWN of NARCB BX
Shield No. 4057, Tax ID No. 936246
One Police Plaza, 11th Floor
New York, NY 10038

PO ROBERT JAQUEZ of NARCB BX
Shield No. 192, Tax ID No. 938711
One Police Plaza, 11th Floor
New York, NY 10038

PO ROBERTO TORIBIO of NARCB BX
Shield No. 008715, Tax ID No. 948148
One Police Plaza, 11th Floor
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ERVING MARTINEZ,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Individually and in their
capacities as New York City Police Officers, ABDIEL
ANDERSON, JODI BROWN, ROBERT JAQUEZ,
ROBERTO TORIBIO, and JOHN or JANE DOE 1-10,

Index No.:

Defendants.

-----X

Plaintiff, ERVING MARTINEZ, by his attorneys, SIM & DEPAOLA, LLP, for his
complaint against the above Defendants, alleges as follows:

1. The claim arises from a February 1, 2018 incident in which defendants, acting under color of state law, unlawfully arrested and detained Mr. Martinez. Mr. Martinez was subsequently prosecuted and charged with one (1) count of Criminal Possession of a Controlled Substance, one (1) count of Criminal Possession of a Controlled Substance in the seventh degree and one (1) count of Criminal Sale of a Controlled Substance. As a result, Mr. Martinez was deprived of his liberty and suffered physical injuries. Mr. Martinez was wrongfully incarcerated for two (2) days or approximately twenty-nine (29) hours, until Mr. Martinez was released on or about February 2, 2018 at about 8:00 p.m. The criminal prosecution against Mr. Martinez was favorably terminated when all charges were dismissed on June 8, 2018.

PARTIES

2. Plaintiff Erving Martinez (“Mr. Martinez”) resides at 2851 Webb Avenue, County of Bronx, State of New York.
3. The Defendant City of New York (“City”) is a municipal corporation organized under the laws of the State of New York.
4. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
5. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
6. Defendant Abdiel Anderson of NARCBBX (“Anderson”) was, at all times here relevant, a detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Anderson was, at the time relevant herein, a Detective under Shield No. 1429, and Tax ID No. 932254. Defendant Anderson is sued in his individual and official capacities.
7. Defendant Jodi Brown of NARCBBX (“Brown”) was, at all times here relevant, a detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Brown was, at the time relevant herein, a Detective under Shield No. 4057, and Tax ID No. 936246. Defendant Brown is sued in his individual and official capacities.

8. Defendant Robert Jaquez of NARCB BX (“Jaquez”) was, at all times here relevant, a detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Jaquez was, at the time relevant herein, a Detective under Shield No. 192, and Tax ID No. 938711. Defendant Jaquez is sued in his individual and official capacities.
9. Defendant Roberto Toribio of NARCB BX (“Toribio”) was, at all times here relevant, a detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Toribio was, at the time relevant herein, a Detective under Shield No. 008715, and Tax ID No. 948148. Defendant Toribio is sued in his individual and official capacities.
10. At all times relevant Defendants John and Jane Doe 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants John and Jane Doe 1-10, but such knowledge is believed to be in possession of the defendants.
11. At all times relevant herein, Defendants John and Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1-10 are sued in their individual and official capacities.
12. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
13. On November 15, 2018 Plaintiff filed a written notice of claim with the New York City Office of the Comptroller.

14. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
15. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
16. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

17. On February 1, 2018 at approximately 3:30 P.M., Mr. Martinez was in the vicinity of Davidson Avenue and 182nd Street, County of Bronx, State of New York.
18. On said date, time and location, Mr. Martinez was walking with his friend, Ernest, to Ernest's residence.
19. After Mr. Martinez arrived at said location, defendants, including Anderson, Brown, Jaquez and Toribio, illegally and forcibly stopped Mr. Martinez without reasonable suspicion or other legal reason to do so.
20. Defendants, including Anderson, Brown, Jaquez and Toribio, illegally grabbed Mr. Martinez, threw Mr. Martinez against the wall without a legal reason to do so.
21. Defendants, included Anderson, Brown, Jaquez and Toribio, illegally searched and seized Mr. Martinez even though there was no probable cause to do so.
22. Defendant Brown falsely claimed that Mr. Martinez engaged in a drug conversation with another individual and then accepted money in furtherance of that drug conversation, knowing said claim to be false.
23. Mr. Martinez never engaged in these acts.

24. Defendant Brown then falsely claimed that Mr. Martinez allegedly steered or directed a drug sale by telling the alleged drug buyer where to get drugs by pointing toward individuals that were allegedly drug dealers, knowing said claim to be false.
25. Mr. Martinez never engaged in this act.
26. Defendant Toribio, falsely claimed that Mr. Martinez had crack/cocaine in his right hand and dropped it on the ground, which they knew said claim to be false.
27. Mr. Martinez never possessed any crack/cocaine or other contraband.
28. Mr. Martinez asserts that while he was present in said location, he did not sell contraband to any person, and he did not have any contraband on his person.
29. Mr. Martinez further asserts that no contraband was observable, where defendants, including Anderson, Brown, Jaquez and Toribio, claimed to have observed it.
30. As a result of defendants' knowingly and intentionally providing false statements and allegations, Mr. Martinez was falsely arrested under arrest number B18605540.
31. Defendant Anderson was Mr. Martinez' arresting officer.
32. Defendant Anderson falsely arrested Plaintiff due to information provided by Defendant Brown, who falsely claimed that Mr. Martinez sold or acted in concert to sell drugs.
33. Defendant Anderson also falsely arrested Plaintiff due to information provided by Defendant Toribio, claiming that Plaintiff was in criminal possession of crack/cocaine.
34. Defendant Brown was fully aware that Mr. Martinez never engaged in a drug conversation or accepted money in furtherance of a drug sale, but knowingly and

- intentionally chose to state that she observed Mr. Martinez engage in said acts to justify and excuse an otherwise invalid arrest.
35. Defendant Toribio was fully aware that no contraband was observed on Mr. Martinez, but knowingly and intentionally chose to state contraband was observed to justify and excuse an otherwise invalid arrest.
36. Mr. Martinez was never in actual, constructive or statutory possession of any contraband.
37. Mr. Martinez had multiple assaults and batteries committed to his person including but not limited to being placed in handcuffs too tight.
38. Mr. Martinez was subjected to an illegal strip search with a cavity inspection at the police precinct.
39. Said strip search was conducted by Defendants, including Anderson, Brown, Jaquez and Toribio, or at the direction of Defendants, including Anderson, Brown, Jaquez and Toribio.
40. Plaintiff did not commit any crimes or violations of the law.
41. Defendants, including Anderson, Brown, Jaquez and Toribio, intentionally provided said false information to the Bronx County District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Martinez, namely that Mr. Martinez was acting in concert with other individuals to sell drugs and that contraband was observed in the right hand of Plaintiff.
42. Defendant Anderson was Mr. Martinez's arresting officer and signed his criminal court complaint, knowingly and falsely accusing Mr. Martinez of Criminal Possession

- of a Controlled Substance in the seventh degree and other related charges, all of which Anderson and other defendants knew to be untrue.
43. Mr. Martinez was arraigned and formally charged with one (1) count of Criminal Possession of a Controlled Substance, one (1) count of Criminal Possession of a Controlled Substance in the seventh degree and one (1) count of Criminal Sale of a Controlled Substance.
44. At no point did the Defendants, including Anderson, Brown, Jaquez, Toribio, ever observe Mr. Martinez commit any crime or offense.
45. At no point were the defendants, including Anderson, Brown, Jaquez, Toribio, ever told by any witnesses that Mr. Martinez committed any crime or violation of the law.
46. The defendants, including Anderson, Brown, Jaquez and Toribio, had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Martinez.
47. Defendants, including Anderson, Brown, Jaquez, Toribio, never possessed probable cause to believe a prosecution would succeed against Plaintiff, or that Plaintiff was guilty of any crime.
48. While Plaintiff was unlawfully detained, Defendants, including Anderson, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Criminal Possession of a Controlled Substance in the seventh degree and other related charges.
49. Defendants, including Anderson, Brown, Jaquez, Toribio, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely illegally stopping and searching Plaintiff without a search

warrant, arresting Plaintiff without probable cause due to no contraband being observed.

50. Defendants, including Anderson, Brown, Jaquez and Toribio, suppressed evidence and engaged in conduct undertaken in bad faith.

51. Defendants have displayed a pattern and practice of falsely alleging contraband to be in Plaintiff's hand to justify otherwise unwarranted arrests.

52. Plaintiff was wrongfully incarcerated for approximately two (2) days, or twenty-nine (29) hours, until he was released on or about February 2, 2018.

53. Mr. Martinez was forced to return to court approximately five times to fight the false charges levied against him, until all charges were favorably terminated and dismissed on June 8, 2018.

54. Defendants, including Anderson, Brown, Jaquez and Toribio, arrested and caused a baseless criminal prosecution to be initiated against Mr. Martinez for the sole purpose of acquiring overtime pay and an additional arrest credit., and not in furtherance of Mr. Martinez' criminal conviction.

55. During all of the events described, the Defendants, including Anderson, Brown, Jaquez, Toribio, acted maliciously and with intent to injure Plaintiff.

56. At all times relevant hereto, Defendants, including Anderson, Brown, Jaquez, Toribio, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.

57. At all times relevant hereto, Defendants, including Anderson, Brown, Jaquez, Toribio, engaged in fraud, perjury, the suppression of evidence and other actions

conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.

58. As a direct and proximate result of the acts of Anderson, Brown, Jaquez, Toribio, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

59. The above paragraphs are here incorporated by reference as though fully set forth.
60. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
61. Plaintiff was conscious of his confinement.
62. Plaintiff did not consent to his confinement.
63. Plaintiff's arrest and false imprisonment was not otherwise privileged.
64. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
65. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
66. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

67. The above paragraphs are here incorporated by reference as though fully set forth.

68. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.

Constitution by wrongfully and illegally arresting, detaining and imprisoning
Plaintiff.

69. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and
imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's
consent, and without probable cause or reasonable suspicion.

70. At all relevant times, Defendants acted forcibly in apprehending, arresting, and
imprisoning Plaintiff.

71. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the
damages hereinbefore alleged.

72. By reason of the above, the amount of damages sought on this cause of action exceeds
the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

73. The above paragraphs are here incorporated by reference as though fully set forth.

74. Defendants made plaintiff fear for his physical well-being and safety and placed him
in apprehension of immediate harmful and/or offensive touching.

75. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
76. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
77. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
78. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

79. The above paragraphs are here incorporated by reference as though fully set forth.
80. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
81. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
82. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
83. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

84. The above paragraphs are here incorporated by reference as though fully set forth.
85. Defendants initiated the prosecution against Plaintiff.
86. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
87. Defendants acted with malice.
88. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.
89. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
90. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
91. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

92. The above paragraphs are here incorporated by reference as though fully set forth.
93. Defendants initiated the prosecution against Plaintiff.
94. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
95. Defendants acted with malice.
96. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

97. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
98. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
99. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

100. The above paragraphs are here incorporated by reference as though fully set forth.
101. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
102. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
103. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
104. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

105. The above paragraphs are here incorporated by reference as though fully set forth.
106. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
107. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
109. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINETH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

110. The above paragraphs are here incorporated by reference as though fully set forth.
111. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to prevent the termination of their employment due to their unlawful acts.
112. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
113. Defendants intended to inflict substantial harm upon Plaintiff.

114. Defendants acts were in the furtherance of their own self-interests and committed so that defendants would avoid termination and any other negative consequences that would have rightfully resulted from their illegal acts.
115. Defendants abused the legal process to conceal their unlawful acts against Plaintiff and receive credit for an otherwise invalid and illegal arrest.
116. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
117. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
118. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

119. The above paragraphs are here incorporated by reference as though fully set forth.
120. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to prevent the termination of their employment due to their unlawful acts.
121. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
122. Defendants intended to inflict substantial harm upon Plaintiff.

123. Defendants acts were in the furtherance of their own self-interests and committed so that defendants would avoid termination and any other negative consequences that would have rightfully resulted from their illegal acts.
124. Defendants abused the legal process to conceal their unlawful acts against Plaintiff and receive credit for an otherwise invalid and illegal arrest.
125. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
126. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
127. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

128. The above paragraphs are here incorporated by reference as though fully set forth.
129. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
130. Defendant City breached that duty of care.
131. Defendant City placed defendants in a position where they could inflict foreseeable harm.

132. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
133. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
134. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
135. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELVTH CAUSE OF ACTION
Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Defendant City

136. Plaintiff re-alleges and re-avers Paragraphs 1 through 135 of this Complaint as if fully set forth herein.
137. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.
138. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

139. Defendant City's policymakers failed to provide adequate training or supervision to subordinates to such an extent that it amounts to deliberate indifference to the rights of those who come into contact with Defendant City's employees.

140. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

141. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

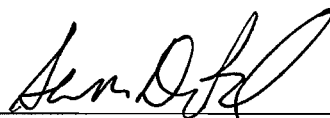
WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- o) Together with the costs and disbursements of this action

Dated: Bayside, New York
April 26, 2019

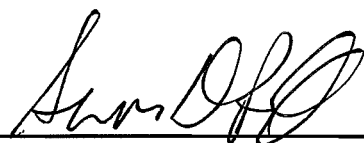


SIM & DEPAOLA, LLP
By: Samuel C. DePaola
Attorneys for Plaintiff
4240 Bell Blvd., Suite 201
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
April 26, 2019


SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ERVING MARTINEZ,

Plaintiff,

-against-

CITY OF NEW YORK, Individually and in their capacities as New York City Police Officers,
ABDIEL ANDERSON, JODI BROWN, ROBERT JAQUEZ, ROBERTO TORIBIO, and JOHN
or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: SAMUEL DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for